House File 191 - Introduced

HOUSE FILE 191
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A BILL FOR

An Act relating to the intentional emission of air contaminants into the atmosphere.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

Section 1. Section 455B.133, Code 2025, is amended by adding the following new subsection:

NEW SUBSECTION. 11. Adopt rules pursuant to section 708C.1 prohibiting the intentional emission of air contaminants into the atmosphere within the borders of this state when such emission occurs for the express purpose of affecting temperature, weather, or the intensity of the sunlight. Notwithstanding any other law to the contrary, rules adopted pursuant to this subsection shall be controlling.

Sec. 2. NEW SECTION. **708C.1 Geoengineering.**

1. Notwithstanding any other law to the contrary, the intentional emission of air contaminants into the atmosphere within the borders of this state when such emissions occur for the express purpose of affecting temperature, weather, or the intensity of sunlight is prohibited.

2. The environmental protection commission shall adopt rules pursuant to chapter 17A to administer this section. The environmental protection commission may adopt emergency rules under section 17A.4, subsection 3, and section 17A.5, subsection 2, paragraph *"b"*, to administer this section and the rules shall be effective immediately upon filing unless a later date is specified in the rules. Any rules adopted in accordance with this subsection shall also be published as a notice of intended action as provided in section 17A.4.

EXPLANATION

The inclusion of this explanation does not constitute agreement with the explanation's substance by the members of the general assembly.

This bill prohibits the intentional emission of air contaminants into the atmosphere with the express purpose of affecting temperature, weather, or the intensity of sunlight, notwithstanding any other law to the contrary.

The environmental protection commission currently adopts rules relating to air quality. The bill requires the commission to adopt rules expounding on the bill's prohibitions. The bill allows the environmental protection

commission to adopt emergency rules to implement the bill's prohibition.